

2. If the specified minerals extend to one hundred and fifty yards or more beyond such boundary, no payment shall be due by the company.

3. If the specified minerals extend further from such boundary on one side of the railway than on the other, they shall, for the purposes of this schedule, be deemed to extend beyond such boundary for the mean of such distances on both sides of the railway.

CHAPTER 21.

An Act to provide for the transfer of certain properties to the Forestry Commissioners and to amend the Forestry Act, 1919, and for purposes in connection therewith.

[18th July 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) Subject to the provisions of this Act, His Majesty on the joint representation of the Forestry Commissioners and of the Commissioners of Woods or other Government department concerned may by Order in Council make provision—

Transfer of
property to
Forestry
Commis-
sioners.

- (a) for the transfer to and vesting in the Forestry Commissioners of any estate, interest, rights, powers and liabilities of the Crown and of the Commissioners of Woods in or in connection with any woods and forests under the management or control of the Commissioners of Woods, or in or in connection with any other property under the management and control of the Commissioners of Woods which at the time of transfer is subject to the same local management as such woods and forests; and
- (b) for the transfer to and vesting in the Forestry Commissioners of the estate, interest, rights, powers, and liabilities of any Government department in or in connection with any woods and forests vested in or held on lease by that department; and

9 & 10
Geo. 5. c. 58.

- (c) for the exception or reservation of any mineral or other rights in connection with any property transferred; and
- (d) for any property transferred under this Act being held and dealt with by the Forestry Commissioners in like manner in all respects as property acquired by them under the Forestry Act, 1919; and
- (e) for the retransfer of any property transferred by any previous order under this section; and
- (f) for such consequential and supplemental matters as appear necessary for giving full effect to the order;

and any such order shall, subject to revocation or alteration by a subsequent order, have effect as if enacted in this Act.

(2) In connection with any transfer effected under this Act, the provisions set out in the Schedule to this Act shall have effect.

(3) Any Order in Council made under this section shall be laid before each House of Parliament forthwith, and, if an Address is presented to His Majesty by either House of Parliament within the next subsequent twenty-one days on which that House has sat next after any such order is laid before it praying that the order or any provisions thereof may be annulled, His Majesty in Council may annul the order or provision, and it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder.

56 & 57 Vict.
c. 66.

(4) Section one of the Rules Publication Act, 1893, shall not apply to any order made under this Act.

Transfer of
forestry
schemes.

2.—(1) All rights and liabilities of the Treasury—

- (a) in respect of any advance made or agreed to before the passing of this Act by the Treasury on the recommendation of the Development Commissioners for the purposes of forestry; or
- (b) in respect of any property transferred by or under this Act to the Forestry Commissioners which has been acquired wholly or partly by means of any such advance;

shall be transferred to the Forestry Commissioners and any sums payable to those Commissioners under or in respect of any such advance shall be paid into the forestry fund.

(2) No further advance shall be made under Part I. of the Development and Road Improvement Funds Act, 1909, for the purposes of forestry whether or not a recommendation for such advance has been approved before the passing of this Act. 9 Edw. 7.
c. 47.

(3) The transfer effected by this section shall be deemed to have had effect as from the first day of April, nineteen hundred and twenty-two, and any payment made to or by the Treasury during the period between the said first day of April and the date of the passing of this Act in connection with or in relation to any such advance on property shall be deemed to have been made to or by the Treasury on behalf of the Forestry Commission, and accounts as between the Treasury and the Forestry Commissioners shall be adjusted accordingly.

3. In the event of the hereditary revenues which are by section one of the Civil List Act, 1910, directed to be carried to and made part of the Consolidated Fund, ceasing at any time, whether during the present or any subsequent reign, to be carried to and made part of that fund, there shall be paid out of the Consolidated Fund or the growing produce thereof to the Land Revenue of the Crown an amount by way of compensation for any transfer effected under this Act of the rights and interests of the Crown, which shall be determined as soon as may be after the transfer by the Commissioners of Woods on the basis of the value of such rights or interests at the time of the transfer. Compensation to
hereditary
revenues.
10 Edw. 7. &
1 Geo. 5.
c. 28.

4. His Majesty may by Order in Council provide for altering the title of the Commissioners of Woods in such manner as may seem appropriate, and, if such provision is made, the Crown Lands Acts, 1829 to 1913, and any other Act or instrument relating to the Commissioners shall have effect accordingly with the necessary modifications. Provision
as to title of
Commissioners of
Woods.

5.—(1) The condition which under subsection (3) of section three of the Forestry Act, 1919, is required to be attached to any grant made under that section shall not apply to any grant so made or agreed to be so made whether before or after the commencement of this Act, and accordingly in that subsection the words from “any advance by way of a grant” to “Provided also that” are hereby repealed. Provisions
as to ad-
vances.

22 Geo. 3.
c. 45.
41 Geo. 3.
c. 52.

(2) None of the provisions of the House of Commons Disqualification Act, 1782, or of the House of Commons Disqualifications Act, 1801, shall be construed so as to extend to the acceptance of an advance under the said subsection (3) by a Member of the Commons House of Parliament not being a Forestry Commissioner.

Pension of
salaried
Forestry
Commis-
sioner.

6.—(1) Subsection (2) of section ten of the Forestry Act, 1919, which authorises the making of schemes providing for the grant and the payment of superannuation and other allowances and gratuities to or for the benefit of officers employed by the Forestry Commissioners, shall apply to persons holding the office of Forestry Commissioner with a salary in like manner as it applies to officers employed by the Forestry Commissioners.

(2) Where a person appointed to the office of Forestry Commissioner with a salary retires from that office on the expiration of his term of office while under the age of sixty years, without renewal of public employment, and is consequently not entitled to any pension under such scheme as aforesaid, he shall, if at the time of his appointment to such office he held an office in the Civil Service which entitled him to superannuation under the Superannuation Acts, 1834 to 1919, or was an officer employed by the Forestry Commissioners, to whom a scheme made under subsection (2) of section ten of the Forestry Act, 1919, applied, be entitled to receive the same superannuation or other allowance or gratuity as he would have been entitled to receive if he had continued to hold the office in the Civil Service or in the employment of the Forestry Commissioners at the same rate of salary and emoluments as when the same was vacated and had retired therefrom on the ground of ill-health at the time when he retired from the office of Forestry Commissioner, subject nevertheless to the conditions which would in that case have been applicable with respect to the grant of such allowance or gratuity :

Provided that —

22 Vict.
c. 26.

- (a) he shall be liable to be called upon to fill office under the Crown in the manner prescribed in section eleven of the Superannuation Act, 1859; and
- (b) such part, if any, of the allowance or gratuity awarded to him, or the whole thereof, as the Treasury may determine shall be paid out of the Forestry Fund.

(3) This section shall apply to a person appointed to the office of Forestry Commissioner with a salary before as well as after the passing of this Act.

(4) Subsection (1) of section ten of the Forestry Act, 1919, is hereby repealed.

7. In this Act the expression “woods and forests” includes any land used or capable of being used for afforestation or for purposes in connection therewith. Definition.

8.—(1) This Act may be cited as the Forestry (Transfer of Woods) Act, 1923, and shall be construed as one with the Forestry Act, 1919, and that Act and this Act may be cited together as the Forestry Acts, 1919 and 1923. Short title
and extent.

(2) This Act shall not apply to Northern Ireland.

SCHEDULE.

Section 1.

PROVISIONS RELATING TO THE TRANSFER OF PROPERTY, &c.

1. All Acts, including local Acts, relating to any property transferred under this Act or to any estate, interest, rights, powers, or liabilities affected by the transfer shall continue of full force and effect, subject only to such adaptations as may be necessary in order to give effect to the transfer.

2. In the construction and for the purpose of any Act of Parliament, judgment, decree, order, award, deed, contract, regulation, byelaw or other document, passed, delivered, executed or made before the transfer to or from the Forestry Commissioners of any property under this Act, from or to any other Government department, but so far only as may be necessary for the purposes of such transfer, the Forestry Commissioners or other Government department shall be substituted for the other Government department or the Forestry Commissioners as the case may require.

3. Where anything has been commenced by or under the direction of any other Government department or the Forestry Commissioners before the transfer to the Forestry Commissioners or another Government department of any property under this

Act, and such thing is in relation to any property so transferred, such thing may be carried on and completed by or under the direction of the Forestry Commissioners or the other Government department, as the case may be.

4. Where at the time of the transfer of any property under this Act any proceedings are pending to which any other Government department or the Forestry Commissioners are a party, and such proceedings have reference to property transferred under this Act, the Forestry Commissioners or the other Government department shall be substituted in any such proceeding for the other Government department or the Forestry Commissioners, and such proceedings shall not abate by reason of the substitution.

5. Where any property is transferred under this Act, or where any transfer under this Act is made subject to any exception or reservation, such provision may be made by Order in Council as to the rights, powers and liabilities of the Forestry Commissioners and the other Government department respectively in relation to the property in question or in relation to such exception or reservation as may appear necessary or expedient.

CHAPTER 22.

An Act to provide for the collection of a contribution by cotton spinners in Great Britain to the funds of the Empire Cotton Growing Corporation; and for other matters relating to the Cotton Industry. [18th July 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Definitions.

1. In this Act the words following shall have the following meanings:—

“The Corporation” shall mean the Empire Cotton Growing Corporation;